

Duration: ~19:08

Source: Fireflies.ai raw transcript

NOTE: Verbatim. No edits.

00:00

GOOGLE: This call is now being recorded.

00:03

AshLe' Penn: Hello?

00:05

David Milne: Yes, it's Dave here from ODHS...I'm just calling you back.

00:11

AshLe' Penn: Oh, thank you for returning my call, Mr. Milne. Umm...I had...a...a question, a few questions for you related to some of the meetings that you have had with my daughter. And they relate to the basis that you've given her for, you know, as a justification as to why she's not able to be around me or my home. It's come to my knowledge that you have told my daughter that you need to ensure that there's not a meth lab at my house. Is this true?

00:41

David Milne: No, I've never mentioned anything about a meth lab at your house or the word meth lab has never entered a conversation with me and Almira,

00:52

AshLe' Penn: okay, About substance use whatsoever. Because I understand that. Well, actually, rather. I'd rather say this, I don't quite understand because I am lacking that petition. I...um... don't know what my allegations of harm are. And that is a serious defect in you all's case that I will be taking action on probably earlier next week. I've been working on my filings, but it's also come to my knowledge that Amira has had some recent medical appointments that I wasn't aware of. I'm simply not being informed under the guise that I'm not cooperative or I'm. Well, those are the words that I'm not cooperative. Now, you have discussed with her my, from your perspective, lack of cooperation, correct?

01:35

David Milne: Um...Not lack of cooperation. What I said was that in order for us to work with you, the expectation is that you go to court. And once you do that, then we can start working with you.

01:46

David Milne: I just explained the process is that if the mom accepts the papers and we said we're going to the papers, then they go to court and then we can start working with you with regards to reunification. So just explain the process and understand it. And you know, the judge

commented it because that's what Tamar...Almira was asking, but she wanted to hear or she wanted to have documentation about what happened at the last court here.

02:10

David Milne: And I said that it's all on tape. You can ask your attorney to get a transcript of the case. And that's what Judge Rooney commented. One was with the Juvenile court, it is an expectation that the parent appears at the shelter hearing.

02:25

AshLe' Penn: So, Mr. Milne, were you at the shelter hearing?

02:29

David Milne: And I just said that, you know, we've got to serve mum papers, but, you know, at this time we've been unable to serve mum papers.

02:36

AshLe' Penn: Okay, have you...were you at the shelter hearing, Mr. Milne?

02:40

David Milne: Sorry?

02:41

AshLe' Penn: Were you at the shelter hearing?

02:43

David Milne: I was, yeah.

02:45

AshLe' Penn: Okay. So related to that, you've not been unable to serve me paperwork. You haven't tried. And secondly...

02:52

David Milne: I've left mine. I've left my...I've been at your door, and I've left my card asking you to please call me. I've written please call me on the back of my business card because nobody.

03:04

AshLe' Penn: As I have. No.No. So here's the thing, and we've talked about this.I don't really want to spend time rehashing what is true and how the law works. Even from a layperson's perspective. I'm not required to accept every invitation at my front door unexpected. I don't even know if really came to my home. I did not receive a card at my front door.I am in communication with you, and yet you explain that process to my daughter. As far as being expected in court, accepting your paperwork, it seems to me like DHS wants me to do its job while it is not doing its job lawfully. So this is not the way the process works.

03:41

AshLe' Penn: The process works like this. I'm being very careful not to. I'm being very careful

not to interrupt you. I'm being very careful not to interrupt you because I would rather have a productive conversation. I've been very careful. So please respect that. And so the way that this process works is that in order for. Excuse me. In order for the Juvenile Dependency Court to take jurisdiction, even temporarily, over a child, that they may only do so. And the word only is not used very often in Oregon Revised Statutes, but it is for this. And so what I believe happened because you were there at the shelter hearing, is that Ms. Ireland Mahoney. I believe that Ms. Mahoney entered an appearance for me where I did not authorize her to do that. And that's something that I'll have to untangle myself. But that is the only way that the Juvenile Dependency Court could possibly make. Maintain this case as it is, with an attorney who has misrepresented their authority to appear on my behalf, whom does not represent me and would totally be violating the law by entering an appearance on my behalf.

04:45

AshLe' Penn: And is that why?

04:47

David Milne: That's. That's between you and your attorney? I would just like to ask.

04:52

AshLe' Penn: Absolutely. I agree with you. Go ahead.

04:53

David Milne: You said you wouldn't interrupt me.

04:55

David Milne: So is there a date, time next week where we can meet and I can serve you with the papers that the court is requiring to be received?

05:02

AshLe' Penn: Yes, there is. Yes, there is. Let's set that time up. Because when that time happens, Mr. Milne, prior to that time occurring DHS, you, as the current caseworker, operating within your ethical and legal framework, you'll be required before that day to make note on record of the perjury that took place at the shelter hearing of DHS's failure to offer services and DHS's failure to acknowledge that a family member whom was present prior to protective custody being taken was present and could mitigate the removal. But DHS did not measure parental capacity. We've gone through this. I'm not going to make this. I'm not going to help you cure your defects. I'm...I want to accept service. Let's get this clear. I want to accept service. But until you honor your process and until you act lawfully, because the things that I'm saying, they're not just bothersome, they're not annoying, they're unlawful. You've removed a child under the premise that you've prevented the removal, that there was such an immediate harm, that the removal was absolutely imminent and necessary, that there's nothing that could have possibly prevented it.

06:10

AshLe' Penn: You didn't measure my parental capacity. These are things that are integral to

your job. You don't just get to forget them, move on, act like you didn't forget them, and put that weight on the parent, because they're there for a reason. Can you help me understand why these steps are just so inconsequential to you when that is, when that's in Oregon's plan?

06:35

David Milne: You're not letting me answer it.

06:37

AshLe' Penn: Well, I will, but Oregon has given assurances to the federal government and the state plan, and those assurances have not taken place. And why?

06:46

David Milne: So from what I can understand, when being at the shelter hearing, the judge explained that they would accept the motion that you sent. However, it was misinformed. And the judge commented on record that it is an expectation of that court for parents to appear before them. And I believe that when you're saying that everything that DHS has done isn't legal.

07:09

AshLe' Penn: No, no. That doesn't address anything that I said. No, hold on. I won't let you obfuscate. Mr. Milne, I. Answer the question. That was at the review hearing. That's not the shelter hearing. That was not the shelter hearing. That was the second hearing. I'm talking about. At the shelter hearing. We're talking about prior to removal, your skill, and I don't want to do that. You're.... What that's called is called obfuscation. You're not answering the question and then telling me not to interrupt you. Please answer my question.

07:49

David Milne: I believe the agency has acted in accordance to the directions of the court.

07:55

AshLe' Penn: No, no, no, no, no, no. Stop, stop, stop, stop, stop, stop, stop, stop, stop.

08:01

AshLe' Penn: Mr. Milne, before we go to court, this is on September 6th. The shelter hearing was on September 8th. Let's forget about the court for a moment, because that's what you guys are relying on and hiding behind. Let's move forward. No, no, no.

08:30

David Milne: We're not hiding behind the court.

08:01

AshLe' Penn: Wait a minute. Hold on a second. This is important, and, and we really do need to have this out, so just don't get you. You need to stop.

08:30

David Milne: I think that's what you want to do you want to vent your frustrations.

08:32

AshLe' Penn: Before that shelter hearing.

08:34

David Milne: That's not what my job is. I called you.

08:38

AshLe' Penn: But it is your job. But it is. And I'm only talking about your job Mr. Milne I'm not talking about the court. I'm talking about preventing the removal.- before that. You're skipping steps.

08:52

David Milne: Ok, the removal has already happened. The removal has already happened.

08:46

AshLe' Penn: Oh really? Absolutely. Is that how DHS comports itself? It does what it wants...does not prevent the removal. Does not offer services. Refuses to acknowledge that a family member was present. And then you say oh well, we broke the law. So what?

08:54

David Milne: I never said we broke the law I said I believe we acted in accordance to the law.

08:53

AshLe' Penn: No because you won't address it. Mr. Milne, you're going to the court. You're hiding behind the court.

08:55

David Milne: I'm not hiding behind anything.

08:56

AshLe' Penn: We're talking about prior to that.

08:57

AshLe' Penn: I'm not hiding behind anything.

08:58

AshLe' Penn: You are because the question is very clear and if you're a caseworker for DHS in Oregon. Then I know you know what I'm talking about. You have a responsibility to prevent the removal. You have a responsibility to measure parental capacity. You have a responsibility to acknowledge family that is present. You have a responsibility to offer services. You have a responsibility not to perjure yourself in front of court at the removal hearing. But you want to skip past all of that and go to the review hearing?

11:35

David Milne: The removal has already happened.

11:35

AshLe' Penn: Yes it has and we're talking about prior to that Mr. Milne. Prior to the removal, taking place. Prior to the removal...Are you really going to...Are you really going to sit here on this phone right now and tell me so what - the removal happened. And it happened the way i'm saying it happened because that's how it happened, but so what?

12:01

David Milne: I believe

12:04

AshLe' Penn: That's what you're saying. Because the court accepted your perjured testimony?

09:20

David Milne: I, I, I, believe... that's your word.

09:25

AshLe' Penn: It's not my words. You guys told the court that I refused a safety plan that was never offered to me.

09:00

David Milne: **AshLe'**...Is there anything I can help you with moving forward?

09:36

AshLe' Penn: Absolutely. Absolutely, there is. We can talk about. Absolutely there is. We can talk about. The records that you're going to send me Mr. Milne. The records that reflect what services were offered to prevent the removal. And you can send that to me digitally. You can send me. Yea, absolutely- I'd like those documents from you. I'd like to see whatever assessments that were conducted on me as a parent to measure my parental capacity. I'd like to see the record of DHS attempting to keep my family intact prior to the removal. Because it seems to me like, and thank you for acknowledging it, you recognize that your agency removed a child without doing what it's supposed to do first. And then you hide behind the court.

09:42

David Milne: You're contradicting yourself.

09:45

AshLe' Penn: How? How am i contradicting myself? How?

11:10

David Milne: You've said on several times that there was a nine minute period when DHS was.

11:15

AshLe' Penn: I didn't say that. It was a 19 minute period. It was 19 minutes between 5:40 and 5:59.

11:22

David Milne: They were discussing returning.

11:24

AshLe' Penn: No, they. They were expecting me at the hospital. /iknow what I said because I live it. And that's my daughter and I actually love her and I actually do want her and have the best intentions for her. So at 5:40 when I received a message that says, hey, Ms. Penn, where are you? We're looking for you. We need you here to retrieve your daughter. I said, listen, I don't have transportation. I'm not able to be. I'm sending my family, who is a mitigating factor, despite the fact that you didn't measure my parental capacity or offer services, or the fact that Amira denies making that statement in front of dhs. And with my uncle's presence. Despite all of that, now we have a family member who was present prior to removal mitigating the removal, and DHS doesn't even acknowledge that. So we are talking about your job and acting unlawfully because you're telling me that DHS did everything it was supposed to do. Did it? Well, I would like to see those records. Mr. Milne, you asked me a very specific question. I would like to see those records. What services were offered? A safety plan that wasn't offered to me until October 1st? Is that what you're saying?

14:43

David Milne: No, I believe that all these records would have been given to you had you appeared in court.

14:48

AshLe' Penn: Bull snap! That's bull snap. You know why?

12:44

David Milne: Called the disposition. I think its called the disposition.

12:46

AshLe' Penn: You know why? You know why? **Because** DHS failed to serve me. It's not my job to serve myself. I have to serve myself now.

12:57

David Milne: No, no you don't.

12:59

AshLe' Penn: No, I don't. But I have several communications between myself and Ashley Crafton and Heather Kiddo and yourself prior to the first time you tried to serve me, which was on October 14th or November 14th, it was. It was some months later the first time anyone ever mentioned a service to me. The first time was months after her removal. Mr. Milne, are you really going to act this obtuse? Are we really going to be this obtuse and indifferent to the process? That's what this is. This is a willful indifference to your process.

13:35

David Milne: That's your interpretation of what happened.

13:38

AshLe' Penn: And, no, you're directly ignoring what I'm saying to you. That is factual on the record. That is not me interpreting anything. I'm begging you to stop obfuscating and to

acknowledge, or at least at least just acknowledge. Take a position. But you're not even doing that, which is actually unlawful in itself because you're an administrative agency. You have to take a position. You can't just ignore what I'm saying. And I'm saying to you that prior to the court making the statement, that I'm expected to be there without having any compulsion, but through service of summons, because that's what the summons says, the summon says, be in court on this day without that taking place and not even being offered to me until months after her removal. You'd have to help me understand how you're not acknowledging that DHS didn't do nearly any of what it is required to do prior to removing a child from their family. And you want to talk about court. I'm talking about on September 6th, 7th, and the morning of the 8th. And yes, the court. You should also know this. It's not your. This is not your wheelhouse. But that court clerk and that judge saying that my ORCP motion doesn't apply to juvenile dependency. That's probably because I have record of filing a motion prior to that that the court clerk took and threw in the trash and did not mention orcp. It only mentioned ors for 419B. They couldn't have that one make it through because that one was jurisdictional and they took my filing and they threw it away. That's, again, not your wheelhouse. But I have appeared more than once through how. In a way that Oregon recognizes appearance, and that is through a written filing. And I was told I could not, and I still sent it. I have record of it. But, Mr. Milne, none of that is the reason why I'm talking to you as the caseworker. I'm talking to you as the caseworker because I would like to see the records prior to the removal of what DHS did. You know, reasonable efforts, that whole thing. You guys are getting paid for. Amira and you're only getting paid for her because you claimed to have exhausted reasonable efforts to prevent that removal. Which means you're stealing.

15:49

David Milne: Yeah, I don't think the judge would have signed the order.

15:53

AshLe' Penn: Who cares about the judge. You guys lied. You lied to her without a party present. Of course she's going to believe what you said because you lied. That doesn't matter. Stop talking about the court. And you have a responsibility prior to going to court, Mr. Milne, and that's important. And you want me to accept the service? To jump into court when you guys have fast forwarded past what you're supposed to do. So let's talk about prior to going to court.

16:26

David Milne: No, because. Because it's. You're talking about the past and I.

16:31

AshLe' Penn: I'm talking about the past?

16:33

AshLe' Penn: Mr. Milne, thank you for your time.

16:36

AshLe' Penn: I needed this call.

16:38

AshLe' Penn: I needed this call in my records.

16:41

AshLe' Penn: Thank you so much.

16:43

AshLe' Penn: Appreciate it.

16:45

AshLe' Penn: Have a good day.

16:47

David Milne: You, too.